

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

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SUBJECT: USDA Insider Risk Program	DATE: May 14, 2026
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1. PURPOSE

This Departmental Regulation (DR) establishes the United States Department of Agriculture (USDA) policy for the Insider Risk Program.

2. SCOPE

This DR applies to all USDA Federal employees and any non-Federal individuals who perform duties in partnership with or on behalf of USDA under any type of arrangement, such as a consultant, contractor, cooperator, collaborator, visiting scientist, affiliate, advisor, fellow, retired annuitant, volunteer, emeritus professor, student, or intern.

3. SPECIAL INSTRUCTIONS/CANCELLATIONS

This DR supersedes DR 4600-003, *USDA Defensive Counterintelligence and Insider Threat Programs*, dated July 12, 2021. This policy is effective upon publication and will remain in effect until it is superseded or it expires.

4. BACKGROUND

As a result of Executive Order ([E.O.\) 13587](#), *Structural Reforms to Improve the Security of Classified Networks and the Responsible Sharing and Safeguarding of Classified Information*, dated October 7, 2011; and the Presidential Memorandum, [National Insider Threat Policy and Minimum Standards for Executive Branch Insider Threat Programs](#), dated November 21, 2012, all executive branch departments and agencies are mandated to develop and implement a program with the primary mission of preventing, deterring, and detecting compromises of classified information by insiders.

The expanding and evolving threat landscape necessitates our efforts to address the full scope of insider risks, including compromises of sensitive, but unclassified, information that jeopardizes our national and economic security.

Insiders, defined as those who have authorized access to federal resources and assets, pose the risks of espionage, terrorism, extremism, unauthorized disclosure, fraud, theft, sabotage, acts of harm to self or others, and workplace violence.

In addition, USDA must strengthen protection of its Research and Development (R&D) against foreign government interference and exploitation by controlling access to, and utilization of, our research facilities and information in accordance with National Security Presidential Memorandum ([NSPM\) 33](#), *Supported Research and Development National Security Policy*, dated January 14, 2021, the [CHIPS and Science Act](#), dated August 9, 2022, the [National Farm Security Action Plan](#), dated July 8, 2025, and the [America First Memorandum for USDA Arrangements and Research Security](#), issued July 8, 2025.

5. POLICY

The Office of Homeland Security (OHS) Insider Risk Program acts as a central hub to detect, deter, and mitigate potential insider risks. The program ingests reported concerns and utilizes interdisciplinary teams to triage each case and determine the best course of action, such as referrals for administrative action or criminal investigation.

a. Critical program requirements include:

- (1) Monitoring: Continuous, authorized monitoring of user activity on networks and systems to detect anomalies and potential insider risks, to include incorporating User Activity Monitoring (UAM) and communication compliance tools on the

unclassified network with the support of the Office of the Chief Information Officer (OCIO);

- (2) Information Analysis & Referral: Analyzing, reporting, and referring potential insider risks to the appropriate party for action;
 - (3) Employee Awareness & Training: Providing employees with initial and annual insider risk awareness training;
 - (4) Access to Information: Gathering and analyzing information relevant to insider risks from all sources, including various departments covering security, human resources, ethics, legal, and information assurance, and publicly available electronic information (PAEI); and
 - (5) Compliance & Oversight: Collaboration and assessment of the program's policies, procedures, effectiveness, and legal compliance.
- b. OHS provides an electronic reporting capability for individuals to report potential risk indicators (PRI) via the Insider Risk Program intranet page at [Report a Potential Insider Risk](#). As an alternative method, concerns may be sent to insider@usda.gov.
 - c. All Federal records maintained by the Insider Risk Program will be restricted to personnel who need such information to perform their authorized functions and act on insider risk referrals. Specific non-disclosure agreements (NDA) are required by all parties involved in conducting inquiries or analyzing results.
 - d. The Insider Risk Program works with the OHS Personnel and Document Security Division (PDSD) to review continuous vetting (CV) alerts that may contain insider risk concerns.
 - e. The Insider Risk Program works with PDSD to review information reported by individuals occupying sensitive positions or access to classified information in accordance with the Security Executive Agent Directive ([SEAD](#)) 3, *Reporting Requirements for Personnel with Access to Classified Information or Who Hold a Sensitive Position*, or its successor, as it related to potential insider risks.
 - f. The Insider Risk Program works with Mission Area, Agency, and Staff Office Personnel Security offices to review self-reported information from the Federal workforce in accordance with "Reporting Requirements for the Continuous Vetting Trusted Workforce" under the Federal Personnel Vetting Management Standards (PVMS), dated July 23, 2024, or its successor, as it relates to potential insider risks.
 - g. OHS consults with the Departmental Records Officer, the General Counsel, Civil Rights Directors, Labor Relations Officers, and the Departmental Chief Privacy Officer to ensure any legal, privacy, civil rights, or civil liberties issues (including use and

inappropriate dissemination of personally identifiable information (PII)) are appropriately addressed.

- h. OHS performs self-assessments in compliance with Federal insider risk-related policies and standards.
- i. OHS will enable independent assessments, in accordance with Section 2.1(d) of [E.O. 13587](#), *Structural Reforms to Improve the Security Classified Networks and the Responsible Sharing and Safeguarding of Classified Information*, of compliance with established insider threat policy, procedures, and standards.
- j. All Mission Areas, agencies, and staff offices will ensure non-United States (U.S) Persons visiting or on an arrangement with USDA, including those working from co-owned spaces or remotely, are reported to OHS for screening in accordance with [DR 4600-004](#), *Foreign Visits and Assignments Vetting*.
- k. The Insider Risk Program provides mandatory insider risk awareness training on an initial orientation and annual basis. This training is reinforced through periodic messaging campaigns to individuals holding sensitive positions (with or without a security clearance) and personnel conducting Science and Technology (S&T) activities or participating in the process of allocating Federal R&D funding. The required training audience across the S&T enterprise will vary by agency. Personnel will be tasked who are in positions deemed vulnerable to insider risk concerns, and those in positions whose duties support identifying potential insider risk indicators. The training will address the following topics:
 - (1) The importance of detecting potential insider risks and reporting suspected activity to the Insider Risk Program;
 - (2) Methodologies of adversaries to recruit trusted insiders; and
 - (3) PRI and how to report to the Insider Risk Program.
- l. OHS complies with any assessment or reporting requirements on program implementation and status as set by the Office of the Director of National Intelligence (ODNI) or other authority.
- m. Records are retained in accordance with the USDA *Records Control Schedules* ([RCS](#)) and *General Records Schedules* ([GRS](#)) from the National Archives and Records Administration (NARA).
- n. OHS immediately advises the Federal Bureau of Investigation (FBI) of any information, regardless of origin, that indicates that classified information is being, or may have been, disclosed in an unauthorized manner to a foreign power or agent of a foreign power as required by Public Law ([P.L.](#)) [103-359, Section 811](#), *Extract from Intelligence Authorization Act of Fiscal Year 1995, Coordination of Counterintelligence Activities*.

6. COMMITTEE AND WORKING GROUPS

a. Senior Steering Committee.

- (1) Senior-level officials from multidisciplinary programs will be appointed by the appropriate agency and staff office Heads to a Senior Steering Committee (the “Committee”), chaired by the OHS Senior Official. Members of the Committee represent staff offices with a role in the receipt and retention of information relating to the background, conduct, and activities of USDA employees, contractors, and volunteers. This cross-functional committee will provide strategic advice and facilitate information sharing to address potential counterintelligence (CI) threats or insider risk inquiries. The Committee members will be from the following organizational components, with additional members added from other Mission Areas, agencies, and staff offices as needed to address specific inquiries:
 - (a) Director of OHS, serving as the Senior Steering Committee Chair;
 - (b) Office of Contracting and Procurement (OCP);
 - (c) Office of Ethics (OE);
 - (d) Office of Human Resource Management (OHRM);
 - (e) Office of Safety, Security, and Protection (OSSP);
 - (f) Office of the Assistant Secretary for Civil Rights (OASCR);
 - (g) Office of the Chief Financial Officer (OCFO);
 - (h) Office of the Chief Information Officer (OCIO);
 - (i) Office of the Chief Scientist (OCS);
 - (j) Office of the General Counsel (OGC); and
 - (k) Office of the Inspector General (OIG).
- (2) OIG will play an advisory role and only for the purpose of engaging in proper sharing of information with the Department, as appropriate, to ensure that both OIG and the Department can engage in their respective roles regarding potential insider risks. The OIG, however, will not be part of the decision-making process for determining the program operating steps the Department takes with respect to the related Departmental programs.

b. Working Groups.

- (1) Working groups will be formed for specific purposes and durations, and with specific goals and objectives. These working groups will report to the Insider Risk Program Manager and share information with the Senior Steering Committee members.
- (2) The working group members should possess a minimum of a Secret (S) level security clearance, and up to Top Secret/Sensitive Compartmented Information (TS/SCI) access to provide the full scope of the information or designate someone from their agency with the appropriate security clearance based on the situational needs of an inquiry or project. Exceptions are permitted as needed by the Senior Official. Members without a security clearance will be restricted from classified discussions and information.

7. ROLES AND RESPONSIBILITIES

- a. The Secretary of Agriculture delegates authority to the Director of OHS, per the Code of Federal Regulations ([CFR](#)) [Part 7, § 2.95](#), *Director, Office of Homeland Security*, to establish, direct, and maintain an Insider Risk Program at USDA.
- b. The Director, OHS, will:
 - (1) Serve as the Senior Official responsible for the overall management and oversight of the Insider Risk Program;
 - (2) Chair the Senior Steering Committee;
 - (3) Provide resource recommendations to the Secretary of Agriculture;
 - (4) Delegate the authority to the Insider Risk Program Manager (PM) to carry out daily duties and policies for the implementation of the Insider Risk Program consistent with guidance and standards developed by the National Insider Threat Task Force (NITTF);
 - (5) Ensure that OHS offices, including PDSD and the National Security Division (NSD), provides Insider Risk Program personnel with regular, timely, and, where possible, electronic access to information necessary to identify, analyze, and resolve insider risk matters including, but not limited to, all information contained in personnel security files, background investigation reports and alerts, security incidents and violations records, and any self-reported information, such as those items reported under SEAD 3, CV, and for SCI holders;

- (6) Maintain Service Level Agreements (SLA) or Memoranda of Agreement (MOA) with the providers of classified network access for user monitoring on USDA user accounts to detect activity indicative of an insider risk behavior;
- (7) Facilitate oversight reviews to ensure compliance with national and Departmental insider risk policies and applicable legal, privacy, and civil liberty protections by:
 - (a) Performing self-assessments of compliance with insider risk policies and standards;
 - (b) Establishing an external Oversight Review Panel (the “Panel”) with OGC, OIG, and civil liberties and privacy officials (excluding personnel associated with the Insider Risk Program and members of the Senior Steering Committee) to conduct annual independent oversight reviews. The oversight process will be formalized with written documentation; and
 - (c) Enabling independent assessments, in accordance with Section 2.1(d) of E.O. 13587, of compliance with established insider risk policy and standards by providing information and access to personnel of the NITTF or other Federal partners.
- (8) Provide an annual report through the Assistant Secretary for Administration for the Secretary on the status of the Insider Risk Program, including documented results of the program’s accomplishments, resources allocated, risks identified, program goals, impediments, and challenges;
- (9) Collaborate with the General Counsel, the Departmental Chief Privacy Officer, the Departmental Records Officer, Labor Relations Officer, and the Assistant Secretary for Civil Rights (ASCR) to ensure that all program activities are conducted in accordance with applicable laws, regulations, whistleblower protections, civil liberties safeguards, and privacy policies;
- (10) Establish oversight mechanisms or procedures to ensure proper handling and use of records and data, and ensure that access to such records and data is restricted to personnel who are authorized to use the information to perform their assigned functions;
- (11) Establish guidelines and procedures as required by E.O. 13587 and in accordance with NARA and USDA records management requirements for the retention of records and documents necessary to document the Department’s activities, per:
 - (a) [GRS 5.6](#), *Security Management Records, or its successor*;
 - (b) [DR 3080-001](#), *Records Management, August 16, 2016*;

- (c) [DR 3090-001](#), *Litigation Retention Policy for Documentary Materials including Electronically Stored Information*, May 28, 2008; and
 - (d) [DR 3099-001](#), *Records Management Policy for Departing Employees, Contractors, Volunteers, and Political Appointees*, July 2, 2012.
- (12) Coordinate referrals to the FBI for violations of P.L. 103-359, § 811, with OGC and OIG; and
- (13) Serve as the USDA senior liaison to the Intelligence Community (IC) for all insider risk-related activities.
- c. Mission Area, Agency, and Staff Office Heads will:
 - (1) Submit information on all non-U.S. Persons working with or visiting USDA to OHS for screening before allowing logical or physical access, in accordance with DR 4600-004, *Foreign Visits and Assignments Vetting*, May 27, 2021, or its successor;
 - (2) Support OHS in ensuring insider risk awareness training requirements are met by impacted personnel; and
 - (3) Proactively and expeditiously refer identified PRI to the Insider Risk Program at Insider@usda.gov. See Appendix D of this DR, *Insider Risk Program-Potential Risk Indicators*.
- d. Chiefs of Personnel Security Offices and Personnel Security Adjudicators will:
 - (1) Provide timely, and where possible, electronic access to relevant Personnel Security databases and files, such as personnel security files, standard forms, background investigation reports, position designation records, contract statements of work, and self-reported information, when requested and necessary for the purpose of identifying and assessing insider risk;
 - (2) Refer all closed investigations that are identified as a field referral on the Case Closing Transmittal (CCT) by the Defense Counterintelligence and Security Agency (DCSA), Investigations Threat Operations Group (ITOG), or its successor, to the Insider Risk Program for review prior to final adjudication; and
 - (3) Proactively and expeditiously refer identified PRI to the Insider Risk Program at insider@usda.gov for review prior to making an adjudicative decision. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- e. Human Resources Officers will:

- (1) Identify a primary and alternate member to represent OHRM on the Senior Steering Committee and, as applicable, to working groups;
 - (2) Provide regular, timely, and where possible, electronic access to all relevant Human Resources (HR) databases and files, such as personnel files, personnel security files, position designation records, position descriptions, payroll and voucher files, outside work and activities requests, performance appraisals, disciplinary action files, misconduct investigations, reported workplace violence incidents, drug testing, and personal contact records, that may be necessary to identify, analyze, and resolve insider risk matters; and
 - (3) Proactively and expeditiously refer identified PRI to the Insider Risk Program at Insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- f. The Inspector General (IG) will:
- (1) Identify a primary and alternate member to represent OIG as a member of the Senior Steering Committee and, as applicable, to working groups;
 - (2) Provide regular, timely access to information in OIG's investigative files that the IG determines are relevant and necessary to identify, analyze, and resolve insider risk matters in accordance with the information sharing Memorandum of Understanding (MOU) between OHS and OIG, signed March 9, 2026;
 - (3) Conduct preliminary investigative actions on referrals sent from the Insider Risk Program and provide the resulting decisions (acceptance for investigation, declination, or referral to another component for administrative action, such as OE); and
 - (4) Proactively and expeditiously refer identified PRI to the Insider Risk Program at Insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- g. The Chief Information Officer (CIO) will:
- (1) Identify a primary and alternate member to represent OCIO as a member of the Senior Steering Committee and, as applicable, to working groups;
 - (2) Implement and support insider risk-related network monitoring tools, such as the built-in Microsoft Insider Risk Management (IRM) and Communication Compliance (CC) solutions (or their successors), on the unclassified network in accordance with the MOU between OHS and OCIO signed August 20, 2025. As the owner and operator of the USDA unclassified network, the implementation of IRM and CC, or their successors, is highly reliant on OCIO;

- (3) Identify primary and alternate OCIO personnel who will work with the Insider Risk Program Manager to assign and manage user roles (IRM Admins, Analysts, Investigators, Auditors, and Approvers) in IRM, or its successor, to designated OHS staff;
- (4) Work with the Insider Risk Program Manager to configure system policies and settings in IRM and CC, or their successors, to support criteria (keyword and triggers) from OHS, to identify potential insider risk and CI concerns;
- (5) Provide regular, timely, and if possible, electronic access to all relevant unclassified network information including personnel usernames and aliases, levels of network access, audit data, unauthorized use of removable media, print logs, email and internet activity, login activity, missing or failure to return government-furnished equipment incidents, repetitive requests for or abused use of login exemptions, unauthorized use of remote access tools, and other data that may be necessary to identify, analyze, and resolve insider risk matters;
- (6) To protect against cyberespionage by Foreign Intelligence Entities (FIE), ensure all appropriate unclassified network systems are compliant with the following:
 - (a) The *Federal Information Security Modernization Act of 2014* ([FISMA](#));
 - (b) Office of Management and Budget ([OMB Circular A-130](#)), *Managing Information as a Strategic Resource*; and
 - (c) National Institute of Standards and Technology ([NIST](#)) guidance.
- (7) Ensure the protection of privacy and civil liberties remains imperative and a key element of all activities, including network monitoring, using pseudonymization, role-based access controls, admin explicit opt-in controls, audit logs, and other tools;
- (8) Ensure network banners provide sufficient legal framework for the monitoring of user activity and subsequent Departmental actions because of such monitoring, including language advising that:
 - (a) The network, information, and records are owned by the U.S. Government;
 - (b) The user understands there is no expectation of privacy on the network;
 - (c) The user is aware of, and consents to, monitoring; and
 - (d) Improper use may result in the Government taking administrative, civil, or criminal action.

- (9) Ensure personnel follow the guidance from [DR 3580-005](#), *Securing Client Devices for International Travel*, to protect against foreign threats to the USDA information technology (IT) architecture; and
 - (10) Proactively and expeditiously refer identified PRI to the Insider Risk Program at insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- h. The ASCR will:
- (1) Identify a primary and alternate member to represent OASCR as a member of the Senior Steering Committee and, as applicable, to working groups; and
 - (2) Advise on applicable civil liberty laws and regulations.
- i. The General Counsel will:
- (1) Identify a primary and alternate member to represent OGC as a member of the Senior Steering Committee and, as applicable, to working groups;
 - (2) Participate in legal forums hosted by the NITTF and other Federal partners; and
 - (3) Provide guidance and assistance to ensure the Department's compliance with applicable laws and whistleblower protections.
- j. The Director, OSSP, and Physical Security Specialists will:
- (1) Identify a primary and alternate member to represent OSSP as a member of the Senior Steering Committee and, as applicable, to working groups;
 - (2) Provide regular, timely, and if possible, electronic access to all relevant OSSP databases and files including credential records and pictures (to assist in identity verification), facility access records, physical security assessments, workplace violence records, and hotline complaints that may be necessary to identify, analyze, and resolve insider risk matters;
 - (3) Obtain notifications from OCIO on newly disabled non-Federal employee IT accounts to ensure badges are deactivated in a timely manner;
 - (4) Ensure badges are recovered from separating employees and non-Federal employees and destroyed, in accordance with NIST Federal Information Processing Standards Publication ([FIPS PUB](#)) 201-3, *Personal Identity Verification (PIV) of Federal Employees and Contractors*; and

- (5) Proactively and expeditiously refer identified PRI to the Insider Risk Program at insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- k. The Office of Ethics Directors and Ethics Program Advisors will:
 - (1) Identify a primary and alternate member to represent OE as a member of the Senior Steering Committee and, as applicable, to working groups;
 - (2) Provide regular, timely, and if possible, electronic access to all relevant OE files including but not limited to financial disclosures, reports of outside activities, reports of potential conflict of interest or conflict of commitment, or any other identified information reported to OE that may be necessary to identify, analyze, and resolve insider risk matters;
 - (3) Report any patterns of individuals who fail to self-report outside activities or other required ethics-reportable information to the Insider Risk Program;
 - (4) Identify any potential conflict of interest or commitment to the Department through foreign collaboration precluding unwitting participation in foreign government-sponsored talent recruitment programs (FTRP);
 - (5) Advise on applicable ethics laws and regulations; and
 - (6) Proactively and expeditiously refer identified PRI to the Insider Risk Program at Insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- l. The Chief Financial Officer (CFO) will:
 - (1) Identify a primary and alternate member to represent OCFO as a member of the Senior Steering Committee and, as applicable, to working groups;
 - (2) Provide regular, timely, and if possible, electronic access to all relevant OCFO databases and files including, but not limited to, travel card records, purchase card records, wage garnishments, incidents of misuse, and other financial information that may be necessary to identify, analyze, and resolve insider risk matters; and
 - (3) Proactively and expeditiously refer identified PRI to the Insider Risk Program at insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- m. The Chief Privacy Officer will:
 - (1) Identify a primary and alternate member to provide support to the Insider Risk Program, and, as applicable, to working groups;

- (2) Ensure the program adheres to data protection laws to include guidance on Privacy Impact Assessments (PIAs) and review of UAM triggers for data minimization and safeguarding; and
 - (3) Provide review and guidance to the Insider Risk Program to ensure that privacy, civil liberties, and constitutional requirements are protected in program policies and operations.
- n. The Director of the Office of Contracting and Procurement (OCP) will:
- (1) Identify a primary and alternate member to provide support to the Insider Risk Program, and, as applicable, to working groups;
 - (2) Work with the Head of the Contracting Activity (HCA) to ensure all contractual agreements that are managed by the Chief of Contracting Office's (COCO), Mission Area Senior Program Managers (MASPM), and Contracting Officer's (CO) include enforceable safeguards to detect and mitigate insider risks; and
 - (3) Proactively and expeditiously refer identified PRI to the Insider Risk Program at insider@usda.gov. See Appendix D, Insider Risk Program-Potential Risk Indicators.
- o. The Departmental Records Officer will:
- (1) Identify a primary and alternate member to provide support to the Insider Risk Program, and, as applicable, to working groups; and
 - (2) Provide review and guidance to the Insider Risk Program to ensure that records management responsibilities are addressed in program policies and operations.
- p. The Senior Steering Committee will:
- (1) Serve as advisors to the Defensive CI and Insider Risk Programs in accordance with the committee charter;
 - (2) Address resource and information needs of the Insider Risk Program to support case inquiries;
 - (3) Designate members, as requested, for working groups; and
 - (4) Provide a forum to address cross-organizational issues.
- q. The Director, OCS, will:

- (1) Identify a primary and alternate member to represent OCS as a member of the Senior Steering Committee and, as applicable, to working groups;
 - (2) Identify sensitive areas of research, including critical and emerging technologies, to ensure proper safeguarding of Controlled Unclassified Information (CUI) or other protected information, and to support detection efforts by the Insider Risk Program;
 - (3) Partner with OHS, OIG, and OE to establish policies or clarify existing policies, where applicable, that prohibit Federal personnel currently employed by their respective agencies who are also participants in the U.S. R&D enterprise from participating in FTRPs;
 - (4) Ensure proper oversight and compliance against the exploitation of the USDA R&D enterprise by FTRPs;
 - (5) Partner with OCIO to provide policy guidance regarding the maximum level of IT access non-U.S. Persons working with USDA should have as participants in the U.S. R&D enterprise;
 - (6) Partner with OSSP to establish policies and processes to control and track access to and utilization of Federal Government research facilities; and
 - (7) Proactively and expeditiously refer identified PRI to the Insider Risk Program at insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- r. The Directors of the Principal Research and Statistical Mission Areas, agencies, and staff offices will:
- (1) Identify Subject Matter Experts (SMEs) to provide technical support in the review of scientific research information obtained during insider risk inquiries;
 - (2) Identify and document sensitive research and other areas of CUI in their areas that require additional protections and monitoring from potential insider risks; and
 - (3) Proactively and expeditiously refer identified PRI to the Insider Risk Program at insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.
- s. USDA Federal Employees will:
- (1) Protect all classified national security information from improper disclosure and mishandling in accordance with [DR 3440-001](#), *USDA Classified National Security Information Program Manual*, and [E.O. 13556](#), *Controlled Unclassified Information*, November 4, 2010;

- (2) Protect all sensitive information, assets, and activities from improper disclosure and mishandling, including CUI as identified by E.O. 13556;
- (3) Uphold [Title 5 of the U.S. Code \(U.S.C.\), Part III, Subpart B, § 3331](#), *Oath of Office*, pledging to support and defend the U.S. Constitution against enemies, swear allegiance to the Constitution, and faithfully execute their duties; and [DR 4070-735-001](#), *Employee Responsibilities and Conduct*, October 4, 2007;
- (4) Place loyalty to the U.S. Constitution, laws, and ethical principles above private gain in accordance with [5 CFR § 2635.101\(a\)](#), *Basic Obligation of Public Service*. Employees of the Federal Government may not accept employment, gifts, or compensation from any foreign government, including any entity which is owned or operated by the foreign government, which may include research institutions or universities. This prohibition is based on Article I, Section 9, Clause 8 of the U.S. Constitution (*Foreign Emoluments*) and [DR 5200-003](#), *Gift Acceptance Policy*, January 4, 2018. Any questions regarding this policy should be directed to the USDA OE at daeo.ethics@usda.gov;
- (5) Refrain from participating in FTRP. If an employee is uncertain whether a proposed activity falls within the scope of an FTRP, they must follow ethics review procedures relevant to the activity proposed (e.g., outside activity, acceptability of gifts or donations). Any questions regarding this should be directed to USDA OE at daeo.ethics@usda.gov;
- (6) Report any information that could adversely affect their continued eligibility to hold a sensitive position to PDSD in accordance with SEAD 3;
- (7) Report to their servicing Personnel Security program when a life event changes information previously reported on their investigative form related to their personal history, activities, conduct, and behavior in accordance with reporting requirements for the entire workforce under PVMS;
- (8) Complete annual insider risk awareness training as required, commensurate with their position; and
- (9) Proactively and expeditiously refer identified PRI to the Insider Risk Program via our webpage or Insider@usda.gov. See Appendix D, *Insider Risk Program-Potential Risk Indicators*.

8. INQUIRIES

Please address inquiries concerning this DR to OHS via email at Insider@usda.gov.

-END-

APPENDIX A

ACRONYMS AND ABBREVIATIONS

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6	ASCR	Assistant Secretary for Civil Rights
7	CC	Communication Compliance
8	CDSE	Center for Development of Security Excellence
9	CFO	Chief Financial Officer
10	CFR	Code of Federal Regulations
11	CI	Counterintelligence
12	CIO	Chief Information Officer
13	CNSS	Committee on National Security Systems
14	CNSSD	Committee on National Security Systems Directive
15	CNSSI	Committee on National Security Systems Instruction
16	CO	Contracting Officer
17	COCO	Chief of Contracting Office
18	CUI	Controlled Unclassified Information
19	CV	Continuous Vetting
20	DCSA	Defense Counterintelligence and Security Agency
21	DOD	Department of Defense
22	DR	Departmental Regulation
23	E.O.	Executive Order
24	FBI	Federal Bureau of Investigation
25	FIE	Foreign Intelligence Entity
26	FIPS PUB	Federal Information Processing Standards Publication
27	FISMA	Federal Information Security Modernization Act
28	FTRP	Foreign Government-Sponsored Talent Recruitment Program
29	GRS	General Records Schedule
30	HCA	Head of the Contracting Activity
31	HR	Human Resources
32	IC	Intelligence Community
33	IRM	Insider Risk Management
34	IT	Information Technology
35	LPR	Legal Permanent Resident
36	MASPM	Mission Area Senior Program Managers
37	MOA	Memorandum of Agreement
38	NARA	National Archives and Records Administration
39	NCSC	National Counterintelligence and Security Center
40	NDA	Nondisclosure Agreement
41	NICCS	National Initiative for Cybersecurity Careers and Studies
42	NIST	National Institute of Standards and Technology
43	NITTF	National Insider Threat Task Force
44	NSD	National Security Division
45	NSPM	National Security Presidential Memorandum
46	NT50	Non-Title 50
47	OASCR	Office of the Assistant Secretary for Civil Rights

1	OCFO	Office of the Chief Financial Officer
2	OCIO	Office of the Chief Information Officer
3	OCP	Office of Contracting and Procurement
4	OCS	Office of the Chief Scientist
5	ODNI	Office of the Director of National Intelligence
6	OE	Office of Ethics
7	OGC	Office of the General Counsel
8	OHRM	Office of Human Resource Management
9	OHS	Office of Homeland Security
10	OIG	Office of the Inspector General
11	OMB	Office of Management and Budget
12	OPM	Office of Personnel Management
13	OSSP	Office of Safety, Security, and Protection
14	PAEI	Publicly Available Electronic Information
15	PDSO	Personnel and Document Security Division (OHS Component)
16	PII	Personally Identifiable Information
17	PIV	Personal Identity Verification
18	P.L.	Public Law
19	PM	Program Manager
20	PRI	Potential Risk Indicators
21	PVMS	Personnel Vetting Management Standards
22	R&D	Research and Development
23	RCS	Records Control Schedule
24	S	Secret
25	S&T	Science and Technology
26	SCI	Sensitive Compartmented Information
27	SCRM	Supply Chain Risk Management
28	SEAD	Security Executive Agent Directive
29	SLA	Service Level Agreement
30	SME	Subject Matter Expert
31	SSI	Sensitive Security Information
32	TS	Top Secret
33	UAM	User Activity Monitoring
34	U.S.	United States
35	U.S.C.	United States Code
36	USDA	United States Department of Agriculture

APPENDIX B

DEFINITIONS

Asset. A person, structure, facility, information, and records, information technology systems and resources, material, process, relationships, or reputation that has value.

(Source: The National Initiative for Cybersecurity Careers and Studies (NICCS), [Cybersecurity Glossary](#))

Classified Information. Information that requires protection against unauthorized disclosure and that is marked to indicate its classified status when in documentary form. (Sources: [E.O. 13526](#), *Classified National Security Information*, or any successor order, [E.O. 12951](#), *Release of Imagery Acquired by Space-Based National Intelligence Reconnaissance Systems*, or any successor order, or the *Atomic Energy Act of 1954*, codified at [42 U.S.C. § 2011](#))

Conflict of Commitment. “Conflict of commitment” or “conflicts of commitments” means a situation in which an individual accepts or incurs conflicting obligations between or among multiple employers or other entities. Many institutional policies define conflicts of commitment as conflicting commitments of time and effort, including obligations to dedicate time in excess of institutional or funding agency policies or commitments. Other types of conflicting obligations, including obligations to share improperly information with, or to withhold information from, an employer or funding agency, can also threaten research security and integrity, and are an element of a broader concept of conflicts of commitment. (Source: NSPM 33)

Conflict of Interest. The basic criminal conflict of interest statute prohibits Government employees from participating personally and substantially in official matters where they have a financial interest. In addition to their own interests, those of their spouse, minor child, general partner, and certain other persons and organizations are attributed to them. Assets and other interests, such as employment interests, may also present potential conflicts under other criminal and civil statutes. In addition, “conflict of interest” or “conflicts of interest” means a situation in which an individual, or the individual’s spouse or dependent children, has a financial interest or financial relationship that could directly and significantly affect the design, conduct, reporting, or funding of research. (Sources: [18 U.S.C. § 208](#), *Acts affecting a personal financial interest*; [5 CFR § 2635](#), *Standards of Ethical Conduct for Employees of the Executive Branch*; and NSPM 33)

Continuous Vetting (CV). The evolution of the continuous evaluation concept. CV is the review of the background of an individual at any time to determine whether that individual continues to meet applicable requirements. Vetting policies and procedures shall be sustained by an enhanced risk-management approach that facilitates early detection of issues. CV is a real-time review of an individual’s background at any time to determine if they continue to meet their requirements. (Source: [E.O. 13764](#), *Amending the Civil Service Rules*, *Executive Order 13488*, and *Executive Order 13467 To Modernize the Executive Branch*-

1 *Wide Governance Structure and Processes for Security Clearances, Suitability and Fitness*
2 *for Employment, and Credentialing, and Related Matters)*

3
4 Counterintelligence (CI). Information gathered and activities conducted to identify, deceive,
5 exploit, disrupt, or protect against espionage, other intelligence activities, sabotage, or
6 assassinations conducted for or on behalf of foreign powers, organizations, or persons, or their
7 agents, or international terrorist organizations or activities. (Source: [E.O. 12333](#), *United*
8 *States Intelligence Activities*, as amended)

9
10 Digital Persistent Identifier. The term “digital persistent identifier” or “digital persistent
11 identifiers” means a unique digital identifier that permanently and unambiguously identifies a
12 digital object or an individual. (Source: NSPM 33)

13
14 Economic Espionage. Stealing of trade secret or proprietary information or appropriating,
15 taking, carrying away, or concealing, or by fraud, artifice, or deception obtaining, a trade
16 secret or proprietary information without the authorization of the owner of the trade secret or
17 proprietary information; copying, duplicating, downloading, uploading, destroying,
18 transmitting, delivering, sending, communicating, or conveying a trade secret or proprietary
19 information without the authorization of the owner; or knowingly receiving, buying, or
20 possessing a trade secret or proprietary information that has been stolen or appropriated,
21 obtained, or converted without the authorization of the owner. (Source: [18 U.S.C. § 1831](#),
22 *Economic Espionage Act of 1996*, as amended)

23
24 Emolument. An advantage, profit, or gain received as a result of one’s employment or one’s
25 holding of office. The purpose of the Foreign Emoluments Clause is to prevent corruption
26 and limit foreign influence on Federal officers. (Source: [U.S. Constitution, Article I, Section](#)
27 [9, Clause 8](#))

28
29 Federal Records. Includes all recorded information, regardless of form or characteristics,
30 made or received by a Federal agency under Federal law or in connection with the transaction
31 of public business and preserved or appropriate for preservation by that agency, or its
32 legitimate successor, as evidence of the organization, functions, policies, decisions,
33 procedures, operations, or other activities of the United States Government or because of the
34 informational value of data in them. (44 U.S.C. 3301)

35
36 Foreign Government-Sponsored Talent Recruitment Program (FTRP). A FTRP is an effort
37 directly or indirectly organized, managed, or funded by a foreign government or institution to
38 recruit science and technology professionals or students (regardless of citizenship or national
39 origin, and whether having a full-time or part-time position). Some FTRPs operate with the
40 intent to import or otherwise acquire from abroad, sometimes through illicit means,
41 proprietary technology or software, unpublished data and methods, and intellectual property
42 to further the military modernization goals or economic goals of a foreign government.
43 Many, but not all, programs aim to incentivize the targeted individual to physically relocate
44 to the foreign state for the above purpose. Some programs allow for or encourage continued
45 employment at United States research facilities or receipt of Federal research funds while
46 concurrently working at or receiving compensation from a foreign institution, and some

1 direct participants not to disclose their participation to United States entities. Compensation
2 could take many forms including cash, research funding, complimentary foreign travel,
3 honorific titles, career advancement opportunities, promised future compensation, or other
4 types of remuneration or consideration, including in-kind compensation. (Source: NSPM
5 33)

6
7 Foreign National. A person born outside the jurisdiction of the United States, who is subject
8 to some foreign government and has not been naturalized under U.S. law.
9

10 Insider. Any person with authorized access to any United States Government resource,
11 including personnel, facilities, information, equipment, networks, or systems. (Source: E.O.
12 13587, *Structural Reforms to Improve the Security Classified Networks and the Responsible*
13 *Sharing and Safeguarding of Classified Information*)
14

15 Insider Threat. The threat that an insider will use their authorized access, wittingly or
16 unwittingly, to do harm to the security of the United States. This threat can include
17 damage to the United States through espionage, terrorism, unauthorized disclosure of
18 national security information, or through the loss or degradation of departmental resources
19 or capabilities. (Source: E.O. 13587, *Structural Reforms to Improve the Security Classified*
20 *Networks and the Responsible Sharing and Safeguarding of Classified Information*)
21

22 Insider Risk Program Manager (PM). Individual delegated authority by the Senior Official to
23 carry out the day-to-day responsibilities of the Insider Risk Program.
24

25 LincPass. USDA branded its smart card the “LincPass” to honor President Abraham Lincoln,
26 founder of the Department of Agriculture. The card links an individual’s personal identity to
27 their ability to access Federal buildings and computer systems. The LincPass will be used for
28 access by USDA employees and affiliates.
29

30 Non-Title 50 (NT50). Refers to those Federal departments and organizations who derive
31 authority derive from portions of U.S.C. other than Title 50 or E.O. 12333, which address
32 U.S. intelligence activities. NT50s are involved in many activities that affect national
33 security, such as conducting foreign affairs; combating pandemic diseases; halting illicit
34 trafficking; conducting scientific and medical research; regulating finance, commerce, and
35 transportation; and protecting food, water, and nuclear infrastructures.
36

37 Personal Identity Verification (PIV). PIV outlines a standard procedure developed by the
38 National Institute for Standards and Technology (NIST) that all Federal Departments and
39 Agencies must follow to confirm the identities of its employees and contractors before
40 issuance of a credential (identification badge).
41

42 Publicly Available Electronic Information (PAEI). Information that is available to the public
43 on an electronic platform.
44

45 Sensitive Information, Assets, and Activities. Unclassified information that requires
46 safeguarding or dissemination controls pursuant to and consistent with laws, regulations, and

1 U.S. Governmentwide policies. Activities authorized by law or policy, as determined by
2 departments or agencies, that would have a debilitating impact on the mission of the department
3 or agency or on the economic or national security of the U.S. if compromised.

4 (Sources: E.O. 13526, [E.O. 12829](#), *National Industrial Security Program*, and [E.O. 13549](#),
5 *Classified National Security Information Programs for State, Local, Tribal, and Private Sector*
6 *Entities*; Critical Infrastructure as defined in [E.O. 13636](#), *Improving Critical Infrastructure*
7 *Cybersecurity*; such as E.O. 13556; National Security systems, as defined by the Committee on
8 National Security Systems (CNSS) in the Committee on National Security Systems Directive
9 [\(CNSSD\) 505](#), *Supply Chain Risk Management (SCRM)*, and Committee on National Security
10 Systems Instruction [\(CNSSI\) 4009](#), *Committee on National Security Systems (CNSS) Glossary*)
11

12 Trade Secrets. All forms and types of financial, business, scientific, technical, economic, or
13 engineering information, including patterns, plans, compilations, program devices, formulas,
14 designs, prototypes, methods, techniques, processes, procedures, programs, or codes, whether
15 tangible or intangible, and whether or how stored, compiled, or memorialized physically,
16 electronically, graphically, photographically, or in writing if:

- 17 1. The owner thereof has taken reasonable measures to keep such information secret; and
- 18 2. The information derives independent economic value, actual or potential, from not
19 being generally known to, and not being readily ascertainable through proper means
20 by, another person who can obtain economic value from the disclosure or use of the
21 information. (Source: [18 U.S.C. § 1832](#), *Theft of trade secrets*)
22
23
24

25 United States Research and Development Enterprise. Participants include researchers at
26 academic research institutions, independent research institutions, medical centers and
27 institutes, private companies, and Federal government research centers and laboratories, as
28 well as those who participate in the process of allocating and awarding Federal R&D
29 funding. Projects include those funded by the United States Government, in whole or in
30 part; projects that use United States Government facilities for conducting R&D; and projects
31 in which the United States Government employee and contractor personnel participate,
32 regardless of project's funding source. (Source: NSPM 33)
33

34 U.S. Person. Includes U.S. citizens and permanent resident aliens (aka Lawful Permanent
35 Residents (LPRs) or green card holders). (Source: [E.O. 12333](#))
36

37 USDA Security Council. The USDA Security Council is a centralized structure for USDA
38 Agency and Departmental Leadership to discuss, coordinate, and share security related
39 information and activities across USDA. The USDA Security Council is comprised of two
40 Co- Chairs, a Vice-Chair and Voting Members. The Director of OHS and the Director of
41 OSSP serve as the permanent Co-Chairs.
42

43 User Activity Monitoring (UAM). The technical capability to observe and record the actions
44 and activities of an individual, at any time, on any device, accessing U.S Government
45 information to detect insider risks and to support authorized investigations. (Source:
46 Defense Counterintelligence and Security Agency (DCSA), Center for Development of

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1 APPENDIX C

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APPENDIX D

INSIDER RISK PROGRAM POTENTIAL RISK INDICATORS

The following information was issued by the Department of Defense (DOD) Center for Development of Security Excellence (CDSE) and supported by the National Insider Threat Task Force (NITTF).

USDA applies the Potential Risk Indicators (PRI) to all USDA Federal employees, and any category of non-Federal individual who performs duties in partnership with or on behalf of USDA, such as a consultant, contractor, cooperator, advisor, volunteer, student, or intern that uses his or her authorized access, wittingly or unwittingly, to do harm to the security of the United States. This threat can include damage to the United States through espionage, terrorism, extremism, unauthorized disclosure, fraud, theft, sabotage, acts of harm to self or others, and workplace violence.

Immediately report any of the following PRI to the Insider Risk Program at insider@usda.gov, or via our [webpage](#).

WHAT ARE POTENTIAL RISK INDICATORS (PRI)?

Individuals at risk of becoming insider threats, and those who ultimately cause significant harm, often exhibit warning signs or indicators. PRI include a wide range of individual predispositions, stressors, choices, actions, and behaviors. Some indicators suggest increased vulnerability to insider threat, while others may be signs of an imminent and serious threat. This list is not all-inclusive.

WHY ARE SPOTTING AND REPORTING PRI SO IMPORTANT?

Indicators do not always have diagnostic value or reflect wrongdoing. Exhibiting PRI does not necessarily mean someone is a risk. Most insider risks, however, exhibit one or more PRI. Some PRI may involve activities that are constitutionally protected. Timely and appropriate reporting of PRI is crucial for assessing and mitigating insider threats. National security, critical services, and public safety depend on it. Preventing harm due to insider threats is a shared responsibility. Individuals should adhere to insider threat policies and procedures; organizations will investigate potential threats while preserving employee privacy and civil liberties.

PROFESSIONAL LIFECYCLE AND PERFORMANCE

All individuals possess a unique set of characteristics and circumstances that influence their risk of becoming an insider threat. Organizational change, career progression, job performance, and

1 other workplace dynamics can be relevant factors. Human resources personnel and supervisors
2 are often positioned to recognize risk indicators related to professional lifecycles and
3 performance. Some indicators may seem routine or commonplace, not everyone gets the
4 promotion; some employees underperform, quit, or are fired but when there is grievance,
5 conflict, or unanticipated duress, such indicators deserve security concern.

6
7 Examples:

- 8 • Furloughs and lay-offs
- 9 • Separations and terminations
- 10 • Demotions and reprimands
- 11 • Non-judicial punishments
- 12 • Leaves of absence
- 13 • Unauthorized absence / Absent Without Leave (AWOL)
- 14 • Involuntary administrative leave
- 15 • Hardship leave
- 16 • Declining performance ratings
- 17 • Poor performance ratings
- 18 • Human resources complaints
- 19 • Negative characterizations of previous employment or service

20 21 22 **SECURITY AND COMPLIANCE INCIDENTS**

23
24 The proper handling and safeguarding of protected information are crucial to combating many
25 insider threats such as fraud, theft, and espionage. Protected information includes proprietary
26 information, in addition to classified and other sensitive Government information. All
27 individuals with access have a duty to adhere to rules and regulations for protected information.
28 Compliance failures are a security concern whether they are deliberate or not. Insider risks are
29 frequently the result of negligence. Risk indicators include security and compliance violations,
30 unauthorized use or disclosure, and any inappropriate efforts to view or obtain protected
31 information outside one's need-to-know.

32
33 Examples:

- 34 • Violations related to the handling of protected information
 - 35 • Negligent or lax physical or information security practices despite counseling
 - 36 • Non-compliance with security training requirements
 - 37 • Security clearance denial, suspension, or revocation
 - 38 • Failure to self-report information required for security clearance eligibility
 - 39 • Misuse of information security privileges or credentials
 - 40 • Misuse of facilities or work-issued equipment
 - 41 • Anomalous or suspicious accessing of facilities or systems during non-work hours
- 42
43
44

TECHNICAL ACTIVITY

As organizations adopt information technology to improve operations, they also require additional safeguards to prevent insider risks. Information technology comprises an organization's systems, networks, devices, and associated components such as hardware, software, or firmware. Indicators of the misuse of information technology may also involve the mishandling of protected information.

Examples:

- Unauthorized access or use of any information technology
- Violations of acceptable use or other automated information system policies
- Suspicious or improper activity or correspondence on any system
- Unauthorized modification, destruction, or manipulation of any information technology
- Unauthorized deletion or modification of electronic records or data
- Downloading, storing, or transmitting protected information using unauthorized information technology
- Unauthorized introduction, removal, duplication, or disabling of software on any system
- Negligent or lax information technology security practices despite counseling

ALLEGIANCE TO THE UNITED STATES

Individuals in the Government, or other positions of public trust, are held to a higher standard of conduct compared to the general public. Such individuals may have access to Government facilities, sensitive information, and other assets which require safeguarding. While there is no positive test for it, allegiance may dictate an individual's willingness to protect classified or sensitive information. Negative indicators are broad and include participation in, or support for, acts against U.S. interests; placing the welfare or interests of another country above those of the U.S.; and active participation in extremist organizations that advance, encourage, or advocate the use of violence.

Examples:

- Support or advocacy of any acts of sabotage, espionage, treason, terrorism, or sedition against the U.S.
- Association or sympathy with people attempting or committing such acts
- Association or sympathy with people or organizations who advocate, threaten, or use violence to:
 - Overthrow or influence federal, state, or local Government
 - Prevent Government personnel from performing their official duties
 - Gain retribution for perceived wrongs caused by the Government
 - Prevent others from exercising their constitutional or legal rights
- Active participation in violent extremist groups may include
 - Fundraising, demonstrating, and rallying
 - Recruiting, training, and organizing
 - Distributing print or online material
 - Knowingly wearing clothing, or having tattoos associated with such groups

FOREIGN INFLUENCE AND PREFERENCE

Foreign associations may exist for a variety of reasons, including familial ties or work duties. Foreign contacts and interests rise to a national security concern when they result in divided or conditional U.S. allegiance. They also pose a risk if they create vulnerability to foreign manipulation, coercion, or pressure to act against U.S. interests. Contacts from countries linked to terrorism or known to target U.S. citizens for intelligence operations may be of particular concern. Foreign involvement, such as possessing or seeking foreign citizenship, while not inherently harmful, is a security concern when an individual expresses foreign preference over U.S. interests or attempts to conceal such involvement.

Examples:

- Foreign travel to countries of concern
- Frequent unofficial foreign travel
- Foreign, unofficial contact with a known or suspected foreign intelligence entity (FIE)
- Enabling or facilitating an officer, agent, or member of a FIE
- Continuing foreign national contact
 - Personal contact, telephone, email, or social media
 - Bonds of affection
 - Intimate contact
 - Exchange of personal information
- Foreign business and political interests
- Foreign residency or property interests
- Foreign bank accounts and sources of income
- Possession of a foreign passport or identity card
- Voting in a foreign election
- Service in a foreign military or government
- Application for and receipt of foreign citizenship
- Foreign national cohabitant or roommate

OUTSIDE ACTIVITIES

An individual who engages in outside employment or services, whether on a volunteer or paid basis, does not represent an inherent threat. Outside activities, however, are a security concern if they pose a conflict of interest with the individual's security responsibilities. Any involvement in outside activities that increases the risk of unauthorized disclosure of protected information is of particular concern. While potential risk indicators may have foreign considerations, they also include outside activities with U.S. organizations or persons, especially when it involves matters of national security or sensitive technology. Failure to fully disclosure outside activities when required is also cause for concern.

Examples:

- Foreign employment or service
 - Government of a foreign country
 - Any foreign national or organization

- Representative of any foreign interest
- Any employment or service involving analysis, discussion, or publication of
 - Intelligence
 - National defense
 - Foreign Affairs
 - Protected Technology
- Concealment or failure to fully disclose outside activities

FINANCIAL CONSIDERATIONS

Personal finances and finance-related activities may have a substantial bearing on an individual's suitability for holding sensitive positions and safeguarding protected information. It is not uncommon for individuals to experience financial loss or hardship. However, financial distress is a security concern when it indicates poor judgement or self-control; or it impairs an individual's ability or willingness to adhere to rules and regulations. Financial distress may also arise because of, and thus indicate, other security concerns such as gambling and substance addictions. Unexplained affluence is pertinent to the extent it may result from criminal activity, including espionage.

Examples:

- Inability or unwillingness to satisfy debts
- History of unmet financial obligations
 - Pay garnishment
 - Loan defaults
 - Liens or judgements
 - Bankruptcy
- Evidence of frivolous or irresponsible spending
 - Excessive debt
 - Significant negative cash flow
 - Late payments or non-payments
- Deceptive or illegal financial practices
 - Embezzlement
 - Employee theft
 - Check or expense account fraud
 - Mortgage or tax fraud
 - Intentional financial misstatements
- Failure to file or pay income taxes
- Significant transactions, debts, losses, or conflicts due to gambling
- Unexplained affluence
 - Lifestyle or standard of living
 - Increases in net worth or cash flow

SUBSTANCE ABUSE

The illegal use of controlled substances demonstrates an individual's inability or unwillingness to comply with laws, rules, and regulations. Substance misuse further raises concerns about an individual's reliability and trustworthiness because such behavior may also result in physical or psychological impairment. Alcohol, while not illegal, can similarly increase the risk of insider threat when it is consumed inappropriately, excessively, or abusively. Alcohol-related incidents may be security concerns whether they occur at or away from the workplace.

Examples:

- Illegal drug use while granted access to classified information or holding a sensitive position
- Illegal possession of a controlled substance, including drug paraphernalia
- Misuse of prescription and non-prescription drugs
- Drug test failures or refusals
- Qualified diagnosis of substance use disorder
- Alcohol-related incidents away from work (e.g. drinking and driving, disturbing the peace, spouse or child abuse)
- Alcohol-related incidents at work (e.g. reporting for duty intoxicated, drinking on the job)
- Habitual or binge drinking to the point of impaired judgement
- Voluntary or involuntary treatment for drug or alcohol abuse
- Failure to follow court orders regarding drug or alcohol education, evaluation, treatment, or abstinence.

PERSONAL CONDUCT

A pertinent security concern is defined as any personal conduct that undermines an individual's trustworthiness and reliability; or, if known, could damage one's personal, professional, or community standing.

Examples:

- Disruptive, violent, bizarre, or other inappropriate behavior
- Family conflict and domestic abuse
- Compulsive, self-destructive, or high-risk behaviors
- Sexual behavior that causes vulnerability to coercion, exploitation, or duress
- Emotional or mental instability
- Self-harm, harm to others, or suicidal ideation
- Voluntary or involuntary inpatient hospitalization
- A pattern of dishonesty, falsifying information, or rule violations
- Association with people involved in criminal activity

CRIMINAL CONDUCT

Criminal conduct raises doubts about an individual's reliability and trustworthiness to hold sensitive positions and safeguard protected information. On its face, it demonstrates the inability or unwillingness to comply with laws, rules, and regulations. Potential risk indicators of a criminal nature do not require formal criminal charges or prosecution; credible allegations or admissions are sufficient. Minor offenses (certain traffic offenses, for example) are unlikely indicators of insider threat, unless they contribute to a pattern or combination of offenses that causes concern about an individual's trustworthiness, reliability, or judgement.

Examples:

- Criminal violent behavior
- Sexual assault and domestic violence
- Weapons-related crimes
- Parole or probation or violation thereof
- Failure to follow court orders
- Credible allegations or reports of criminal activity
- Admissions of criminal activity
- A pattern or combination of minor criminal offenses
- Military discharge or dismissal for reasons less than "Honorable"